

Tentative Rulings for August 5, 2026 Department PS2

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS2 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
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- Meeting Number: **161 644 5616**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2300864	PEREZ VS GENERAL MOTORS, LLC.	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Granted.

Attorney fees and costs to be paid by Defendant to Plaintiff within 30 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is a lemon law case. On 9/26/19, Plaintiff, Carlos Perez, purchased a 2019 Chevrolet Silverado, which was manufactured or distributed by Defendant General Motors, LLC (GM). The vehicle was sold with bumper-to-bumper and other express warranties. Plaintiff alleges that during the warranty period, the Vehicle developed nonconformities, including transmission, engine and structural issues. Plaintiff asserts that, despite its inability to repair the Vehicle, Defendant refused to repurchase the vehicle in violation of the Song Beverly Consumer Warranties Act (SBA).

Plaintiff filed his operative First Amended Complaint (FAC) on 6/1/23 alleging five causes of action for: (1) Violation of Civil Code § 1793.2(d); (2) Violation of Civil Code § 1793.2(b); (3) Violation of Civ. Code §1793.2(a)(3); (4) Breach of Implied Warranty of Merchantability; and (5) Fraudulent Concealment.

Plaintiff, Carlos Perez, brings this motion for attorneys' fees, costs, and expenses (\$30,052.48) as the prevailing party in this action due to a signed CCP § 998 Offer to Compromise (§ 998 Offer). (Civil Code § 1794(d).) Plaintiff argues the amounts requested including hourly rates were reasonable and necessary along with a multiplier.

Defendant, GM, opposes the motion arguing that this motion is untimely having been filed 304 days after the Notice of Settlement was filed (3/16/25); that the billing is inflated; that this case does not justify a multiplier; that GM offered to resolve this motion for \$20,000 over a year ago; that GM should only be awarded \$5,501.25; and, that counsel should not be compensated for any work related to the fraud claim among other challenged entries.

The Reply asserts that GM does not oppose the hourly rates sought; that the motion is timely as the date of dismissal is 12/19/25; that the billing entries sufficiently set forth time actually necessary to create the pleadings/discovery; and re-asserts prior arguments.

Song Beverly Attorney Fees

Under Civil Code §1794(d), "[i]f the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." For purposes of settlement, Defendant, GM, agreed that Plaintiff is the prevailing party. (Dec. Keshishian ¶ 20.) Notice of Settlement was filed on 1/31/25. The only question to be determined by this motion is the amount of the award to Plaintiff.

The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial court. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Fee motions should be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 271.) The records should detail crucial information as the types of issues involved, services performed, numbers of hours, billing rates, etc. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) The court is then entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure (time reasonably spent by each biller multiplied by an hourly rate that is reasonable for each biller). (*Serrant v. Priest* (1977) 20 Cal.3d 25, 48.) In exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394; see also *PLCM Group, supra*, 22 Cal.4th at 1096 (factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure). The court does not need expert testimony to determine the reasonable amount of a fee award. (*PLCM Group, supra*, 22 Cal.4th at 1095.)

Here, Plaintiff asserts that there were four attorneys who primarily worked on the case and billed 41.4 hours. This assertion is misleading in that far more than four attorneys worked on this case. The billing records indicate that numerous additional attorneys/timekeepers worked on this case at varying hourly rates including Tionna Carvalho, partner (\$570 [2023]; \$650 [2025]); Dhara Chandy (\$375 [2025]); Mark Gibson (\$495 [2023]); Sandy Huynh (\$450 [2025]); Ian McCallister (\$610 [2025]); Tara Mejia (\$395 [2024]); Ebony Randolph (\$375 [2023]); Sanam Vaziri (\$610 [2023]). This means a total of 12 attorneys worked on this case.

The hourly rates sought by Plaintiff for these attorneys vary from \$285 per hour to \$595 per hour, as follows: James Carroll, attorney (20 years' experience) \$595 per hour; Regina Liou, attorney (19 years' experience) \$525 per hour [2024], \$575 per hour [2025]; Maro Orte, attorney (11+ years' experience) \$440 per hour [2023], \$495 [2024], and \$525 [2025]; and Brian Tan (8 years' experience) \$450 [2023-2024]. (Dec. Chandy ¶ 35.) A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

Based on the Court's own experience, the hourly rate of lead counsel at \$595 an hour or higher is a little high for Riverside County. (*EnPalm, LLC v. Teitler* (2008) 162 Cal.App.4th 770, 774 [the court may rely on its own experience in determining whether the hourly rate sought or hours spent in the matter are reasonable].) Nonetheless, GM has not challenged any of the hourly rates so, no modification is needed.

Plaintiff also seeks to recover law clerk fees performed by Stefanie Maldonado, graduated in 2024, \$325 [2024], \$345 [2025]; Steve Rangel, \$285 [2023]; Yenok Tantanya, graduated in 2019, \$345 [2025]. (Dec. Chandy ¶ 35.) A court may allow any expenses ordinarily billed to a client which are not included in the overhead component of the attorney's hourly rate, including paralegal fees billed separately at the market rate. (*Guinn v. Dotson* (1994) 23 Cal. App. 4th 262, 268.) In any event, the hourly rates of \$325 to \$345 seem a little high as well. However, once again, GM is not challenging those amounts.

GM specifically challenges Plaintiff's counsel's billing claiming that certain entries are inefficient, unnecessary, padded, and unsupported.

Work related to the fraud claim 6.0 hours (\$3,280): by James Carroll: 3/31/23 – 0.3 hours (\$178.50) meet and confer re fraud claim; 6/1/23 – 1.7 hours (\$1,011.50) draft FAC, review demurrer; 11/1/23 – 2.0 hours (\$1,190) review GM's demurrer and MTS; and 11/22/23 by Brian Tan: 2.0 hours (\$900) prepare/attend hearing re demurrer to the fraud cause of action and punitive damages. This is NOT a reasonable reduction as the demurrer to the fraud claim was overruled.

Drafting templated complaint 2.0 hours (\$1,200): two timekeepers: 2/6/23 and 2/13/23. GM argues that it should only take 0.5 hour so, a reduction of 1.5 hours at Vaziri's \$610 hourly rate is needed. Plaintiff persuasively argues that utilizing templates actually makes generating documents more cost-effective. He adds that documents must be tailored to the facts of this case including repair orders, defects, repair history, vehicle information, applicable legal authority. However, two timekeepers is duplicative so, a 1.0 hour reduction (\$610) is appropriate.

Block-billed templated discovery requests 2.3 hours (\$1,035) on 3/13/23: GM argues it should only have taken 0.5 hours so, a reduction of 1.8 hours (\$810) is required. Plaintiff argues the same as above. 1 hour will be reduced (\$450).

Templated discovery responses 1.0 hour (\$595) on 11/30/23: GM argues these are routine requests that do not vary much so, a reduction of 0.5 hours (\$297.50) is required. Plaintiff argues the same as above. .5 hrs. will be reduced (\$297.50)

Templated meet and confer letter re GM's discovery responses 3.1 hours (\$1,364) on 10/31/23: GM argues this time is padded as nearly identical letter are used in other cases so, a reduction of 2.6 hours (\$1,144) is required. Plaintiff argues the same as above. 2.6 hrs. will be reduced (\$1,144)

Templated manufacturer subpoena 0.8 hours (\$396) on 4/8/24: GM argues it should only take 15 minutes to prepare this so, a 0.75 hours reduction (\$371.25) is needed. Denied.

Templated expert witness designation 1.0 hours \$325) on 12/17/24: same argument as above so, a 0.8 hour (\$260) reduction is needed. Denied.

Templated objection to GM's expert deposition notice 1.0 hour (\$325) on 12/17/24: GM argues the same as above so, a reduction of 0.75 hours (\$243.75) is required. Denied.

Templated trial documents 5.8 hours (\$2,610.50) on 12/23/24, 1/13/25, 1/14/25, 1/16/25: GM argues that because too many attorneys worked on this case, the work is duplicative of work done in 2024 so, a reduction of 4.8 hours (\$2,085.50) is needed. Granted 4.8 hrs. (\$2,085.50)

Anticipated fees for this motion 2.5 hours (\$862.50) on 12/24/25 to prepare reply: GM argues this is the same as all GM's fee motions so, a 0.8 hour (\$300) reduction is needed. This amount is no longer anticipated. No reduction is needed.

Repair chronology 2.0 hours (\$570) on 2/3/23: GM argues this is overhead and is not compensable. Stricken as administrative overhead (\$570)

Preparing for trial calls 0.6 hours (\$366) on 1/16/25 and 1/23/25: GM makes the same argument as above. Stricken as administrative overhead (\$366)

Preparing for/attending conferences 5.4 hours (\$2,905.50) on 4/19/24, 4/24/24, 1/24/25, 1/30/25, 1/31/25: GM argues block billing and non-compensable overhead costs. These amounts appear to be reasonable. It is not clear that these tasks were administrative. Denied.

Duplicative review of GM's § 998 Offer 0.5 hours (\$325) on 1/17/25 and 1/24/25: GM argues that two different time keepers reviewed this but, only one can bill so a 0.3 hour (\$195) reduction is needed. It is not clear that this entry was duplicated. No reduction is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid.*) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in a reduced, but reasonable amount of \$19,668.50 - \$5,523.00 + \$3,500.00 = \$17,645.50.

Costs

Plaintiff filed a Memorandum of Costs in the amount of \$1,792.15, which GM does not challenge.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF MIRAMORE, LLC

Tentative Ruling: Hearing continued to September 3, 2026 at 8:30 a.m. in Department PS2.

Defendant Brokers to file Brian Sullivan deposition no later than August 7, 2026. A supplemental reply is due by Plaintiffs no later than August 14, 2026.

Steven Traxler ("Traxler") purchased property in Palm Springs on August 6, 2020 (the "Property"). Traxler's interest in the property has been assigned to Plaintiff Miramore, LLC. Traxler did not visit the Property prior to purchasing and relied on his real estate agents Brian Sullivan, Keller Williams Luxury Homes ("Keller Williams") and Michael Hilgenberg ("Hilgenberg") and the sellers Richard John Tyler ("Tyler") and Lisa Trafficante's ("Trafficante") disclosure statements regarding the Property. It is alleged that Tyler and Trafficante stated in the Property's listing that it had new plumbing, which was false. Plaintiff alleges that the seller's real estate agent and broker of record – John White ("White"), Berkshire Hathaway Homeservices California Properties ("Berkshire"), and AC Palm Desert Corporation ("AC Palm"), should have been aware that this assertion was false. Plaintiff contends that Traxler hired Advantage Inspection Professionals, LLC ("Advantage") to inspect the Property, which found no issues with the Property. After Traxler moved into the Property, he discovered that the plumbing did not work properly. The toilets did not flush all of the way or properly fill. After retaining a plumber, it was discovered that the pipes were not new and had been destroyed by a nearby Ficus's root structure. Plaintiff had to remove massive amounts of mature landscaping and destroy the manicured grounds to fix the issue. This cost Plaintiff in excess of \$200,000. Traxler also became aware of frequent helicopter activity overhead because the Property is located in the helicopter flight path of the nearby hospital's emergency helipad. This, too, was not disclosed.

The operative Complaint, filed August 8, 2023, asserts causes of action for: (1) Violation of Civil Code § 1102; (2) Failure to Disclose Material Facts; (3) Fraud; (4) Breach of Duty to Disclose; (5) Breach of Duty to be Honest and Truthful; (6) Negligence; (7) Negligence; and (8) Negligence.

Cross Complaint. On July 24, 2024, Tyler and Trafficante filed a cross complaint against White and AC Palm for (1) Breach of Fiduciary Duty; (2) Negligence; (3) Implied Indemnity; and (4) Declaratory Relief.

Trial is currently set for September 11, 2026.

Motion for Summary Adjudication (“MSA”). Plaintiff now moves for summary adjudication as to the first cause of action against Tyler and Trafficante. Plaintiff also moves for MSA as to the fourth and sixth causes of action against AC Palm and White.

In opposition, Tyler and Trafficante (the “Sellers”) and White and AC Palm (“Brokers”) argue triable issues exist. Brokers seek a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h) because discovery is ongoing and evidence exists which cannot be presented.

Summary Judgment/Adjudication

A plaintiff moving for summary judgment bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto, while a defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 286, 844.) A plaintiff may move for summary adjudication of a cause of action if the plaintiff asserts there is “no defense” to that cause of action; the plaintiff’s burden of proof on such a motion is to prove each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) “Summary adjudication motions are procedurally identical to summary judgment motions.” (*Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 859.)

It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.) “Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion.” (*Am. Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.)

Procedural Issue(s)

Sellers’ Opposition to Separate Statement / Improper Format

Some of the “disputes” are not true disputes because they are either consistent with Plaintiff’s evidence or the evidence that Sellers provide do not dispute the Undisputed Fact (“UF”). For example, UF #3 states, “Among other details and descriptions of the Property, the Listing also stated that the Property had ‘New Plumbing.’” Sellers dispute this as misstating evidence and asserts, “The cited listing stated, ‘New plumbing and 600 amp electrical allow for expansion. Bring your dreams.’ This is not a true dispute. Rather, it is an objection mischaracterized as a dispute. Even as an objection, it is meritless. Sellers similarly asserts objections as “disputes” to other UF: #4, 5, 9, 11, 18, 19, 21, 25, 26, 27, 29-31, 33, 34, 35, 37-42, and 49.

“The opposing party’s responses to the separate statement must be in good faith, responsive and material. Responses should directly address the fact stated, and if that fact is not in dispute, the

opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists.” (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 875-876.) “Courts should...not hesitate to disregard attempts to game the system by the opposing party claiming facts are ‘disputed’ when the uncontroverted evidence clearly shows otherwise.” (*Id.* at 876.)

Moreover, citing objections and the basis for objection does not conform to California Rules of Court, rule 3.1350(f)(2) that requires the opposing party to “state the nature of the dispute and describe the evidence that supports the position that the fact is controverted” and cite to the evidence to support the position that the fact is controverted. (See also *Hodjat v. State Farm* (2012) 211 Cal.App.4th 1, 8.) Thus, the objections are improper.

Evidentiary Objection(s)

Sellers’ Objections

The Court SUSTAINS Sellers’ objections #7, 13, and 14. The Court OVERRULES Sellers’ objections #1, 2, 3, 4 5, 6, 8, 9, 10, 11, 12, 15, 16, 17.

Brokers’ Objections

As to Evans’s declaration, the Court SUSTAINS the objections to paragraphs 5-19, 22, 23, 27 and OVERRULES the objections to paragraphs 1, 20, 21, 24, 25, 28, 29.

As to Traxler’s declaration, the Court SUSTAINS the objections to paragraphs 8, 15 and OVERRULE the objections to paragraphs 4, 7, 9, 10, 14, 16, 17, 18, 19, 20.

1st Cause of Action – Violation of Civil Code § 1102 et seq. (against Sellers)

Plaintiff argues Sellers violated Civil Code section 1102, et seq. (1) by representing the Property to have new plumbing despite the property’s sewer lines were clogged with years’ worth of Ficus tree roots and (2) failing to disclose of the existence of helicopter noise. Plaintiff asserts had he known about the foregoing, it would have been material to Plaintiff’s decision-making process as to the price he would have paid or whether he would have purchased the Property at all.

Under Civil Code section 1102, et seq., sellers have a statutory obligation to provide written disclosures to buyers regarding the physical condition of the property. Sellers and seller’s agents have a duty to disclose to the buyer any facts which may materially affect the value of desirability of the property where the facts are not known to or within the reach of the diligent attention and observation of the buyer. The statute requires that the Transfer Disclosure Statement (“TDS”) be a copy of the statutory form, filled out and signed by the seller and separately certified by the seller’s agent. (Civ. Code, § 1102.6.) The form is a “check the box” format requiring a yes or no answer to each question relating to the listed disclosure, and if the answer is “yes” an additional explanation of that item must be included. (*Id.*) All disclosures must be made in good faith, which means honesty in fact in the conduct of the transaction. (Civ. Code., § 1102.7.) “[A]ny person who willfully or negligently violates or fails to perform any duty described by any provision of this article shall be liable in the amount of actual damages suffered by a transferee.” (Civ. Cde, § 1102.13.)

“In a real estate transaction, ‘whether the matter which was not disclosed was of sufficient materiality to have affected the value or desirability of the property is...a question of fact.’ [Citation.]” (*Calemine v. Samuelson* (2009) 171 Cal.App.4th 153, 162 [Civil Code 1102.6 duty was not intended to “alter a seller’s common law duty of disclosure”].)

Here, it is undisputed that Sellers and their agent/broker, White, are subject to the requirements of Section 1102, et seq. (UF #1, 44.) Plaintiff presents evidence that White confirmed the MLS listing of the Property on June 23, 2020 was true and accurate. (UF #1-2.) Among other details and descriptions of the Property, the Listing also stated that the Property had “new plumbing” (UF #3), which Sellers were aware of. (Tyler Depo., pg. 33:12-21.) Traxler purchased the Property in reliance on the listing stating the Property had “new plumbing”. (UF #4.)

The TDS statutory form requires a seller to confirm whether the seller is aware of “flooding, drainage or grading problems” and “neighborhood noise problems or other nuisances.” (Civ. Code, § 1102.6.) In their TDS form, Sellers disclosed there were no neighborhood noise problems or other nuisances but that there was “flooding, draining or grading problems.” (Traxler Decl., Exh. G, “TDS”) As to the draining problem, the TDS states the only drainage problem was “in the historic storm/downpour (2019) puddling occurred inside the doors of the Cantina. Subsided quickly with no damage.” (*Id.*)

However, the evidence shows the Property had broken plumbing pipes and sewer lines that were clogged with years’ worth of Ficus tree roots that require replacement. (UF #13-25.) Plaintiff’s evidence shows Sellers knew about the plumbing problem. (UF #29.) Tyler testified that Sellers stayed in the upstairs unit of the guesthouse instead of the main house. (UF #30.) Plaintiff explains the guesthouse was not connected to the City sewer lines and did not suffer from the clogged and broke sewer lines connected to the main house, which the plumber confirmed. (Evans Decl., ¶16.) Plaintiff argues this demonstrates Sellers’ knowledge of the pipe and sewer issue. Moreover, Tyler testified that there was no repiping at the Property. (Tyler Decl., ¶34:10-25.)

As to the noise or nuisance, Traxler testified that on his first night at the Property, Traxler experienced thunderous noise and intense vibrations from a helicopter. (UF #8-11.) Traxler learned the helicopter served the trauma center at Desert Regional Medical Center just a few blocks from the Property. (Traxler Decl., ¶8.) Indeed there was a direct overhead helicopter traffic at the Property leading to the local hospital. (*Id.* at ¶10.) Records from one of the medical transport companies that fly helicopters in and out of local hospital show 2,193 patient-occupied flights dropping off and picking up patients at the hospital during 2019-2022. (UF #41.) When the Property was sold in Plaintiff in August 2020, there were 289 patient-occupied helicopter transports from January 1 to July 30, 2020. (UF #42.) This is circumstantial evidence that tends to show Sellers had knowledge of the helicopter noise and traffic.

Although the undisclosed plumbing issues have been repaired, the helicopter traffic remains indefinite for the foreseeable future, which disturbs Traxler’s ability to enjoy the Property. (UF #43, 45.) Traxler testified that had he known about the plumbing and noise issues, he would never have raised his offer by \$500,000 to purchase the Property, and he relied on the affirmative representation that the Property had “New Plumbing” so that plumbing was not a concern. (Traxler Decl., ¶19.)

Based on the foregoing, Plaintiff satisfied his initial burden under Code of Civil Procedure section 437c, subdivision (b)(3). The burden shifts to Sellers.

Sellers deny actual personal knowledge of any “sewer line” issues. Sellers testified that the Property was not used as their primary residence due to renovations that were done in the primary house and COVID. (Defendants’ Ultimate Fact [“DUF”] #52-55.) Prior to the sale of the Property, Sellers were not aware of anyone in his family experiencing any draining issues, odors, drain backing up, sewage backup, or issues requiring a plumber to come out for service. (DUF #57, 59.) Sellers maintain they were not aware that the guesthouse was not on the city sewer system. (DUF #62.) The inspector tested all plumbing and found everything functioned. (DUF #58.) Sellers were not aware that the guesthouse was not on the City sewer system. (DUF #62.) Moreover,

Plaintiff discovered the sewage issue 8 months after escrow closed in August 2020 and there is no evidence establishing that the Ficus roots means Sellers had nondraining sewage issues eight months prior.

In addition, Sellers presented evidence that Plaintiff was told, in writing, prior to closing that “new plumbing” did not include anything related to the sewer system. In an email to Plaintiff, Sellers addressed the plumbing as follows: “Plumbing—All of the Kitchen and Family wing and master-wing (including Spa bedroom) plumbing is all new. I think the Copper bath – was also redone—I don’t know definitely on Cantina Bar or the Upstairs—they may have some new and some older plumbing.” (DUF #67; Sellers’ Evidence, Exh. 3.) Sellers argue that based on this email, Plaintiff failed to exercise reasonable care to protect itself in violation of Civil Code section 2079.5, which imposes a duty on prospective buyers to exercise care to protect himself, including facts known to or within the diligent attention and observation of the buyer.

As to the helicopter noise, Sellers argue Plaintiff failed to establish Sellers had personal knowledge of any “helicopter noise”. Sellers point out the flight logs Plaintiff introduced do not log lengths of flights, flight paths, destinations, or helicopter or engine models. All the logs show is that on a certain date at a certain time, a helicopter departs or lands at the hospital. Indeed, when Sellers were at the Property, they never had helicopters fly overhead. (DUF #60.) During the Sellers’ 19 years of ownership, the floor and walls of the Property have never been shaken or vibrated by a helicopter, and no thundering sounds were heard. (DUF #61.)

All disclosures under the TDS must be made in good faith, which requires honesty in fact in the conduct of the transaction. (Civ. Code., § 1102.7.) The evidence that Sellers presented rebuts Plaintiff’s evidence that Sellers failed to act in good faith, especially in light of the email Sellers sent explaining the parameters of the “new plumbing.” As to the helicopter noise, while Plaintiff’s circumstantial evidence via the logs is well received, the admissible evidence establishes Sellers lack knowledge. Thus, Sellers met their burden in presenting a triable issue of material fact. Thus, the merits of damages need not be reached at this point. DENIED

4th Cause of Action – Breach of Duty to Disclose (against Brokers)

Plaintiff argues Brokers violated Civil Code section 2079 by failing to disclose the Property did not have new plumbing, contrary to the MLS listing, and failed to disclose the helicopter traffic noise, which White had actual knowledge of. Plaintiff asserts the MLS listing stating the Property has “New Plumbing” gave Plaintiff comfort and he did not have any reason to believe the sewer lines were broken, corroded and filled with Ficus tree roots.

In opposition, Brokers maintain they did not represent to Plaintiff that all of the plumbing was new. White did not have specific knowledge of plumbing issues. White identified areas where there was new plumbing based on information from Sellers. Brokers point out the plumbing issue only came to light because of a “sewer gas smell.” The plumber could not visually see any problems with the plumbing. Likewise, White did not have specific knowledge that helicopters come and go from the nearby trauma center.

Brokers argue that based on Plaintiff’s responses in discovery, it is evident that there is a likelihood that controverting evidence may exist in the form of communications between Plaintiff and its agent, Brian Sullivan (“Sullivan”). Brokers explain they only successfully took Sullivan’s deposition on July 15, 2026 after Sullivan failed to appear at multiple noticed deposition dates. (Alvarez Decl., ¶4.) Sullivan’s deposition occurred only one day before Brokers’ opposition to the MSA was due, and the certified shorthand reporter was unable to timely prepare a rough draft transcript. (*Id.* at ¶6.) Sullivan’s testimony demonstrates Plaintiff’s knowledge of the alleged plumbing issues and helicopter noises. (*Id.* a ¶5.) Thus, Brokers request leave to file and serve a

supplemental declaration attaching Sullivan's deposition transcript upon receipt, and Brokers' Compendium of Exhibits ("BCOE") Exhibit A has been reserved for Sullivan's certified deposition transcript. (*Id.* at ¶17.)

The Fourth District favors continuing summary judgment motions to resolve matters on their merits, even if a continuance would not serve the competing interest of judicial efficiency. (See *Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."].) In *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, the court of appeal found that the trial court had erred in denying a request to continue a summary judgment motion where the request was made at the hearing and the party had not met the standard for a continuance under Code of Civil Procedure section 437c, subdivision (h). The court analogized the granting of an unopposed summary judgment motion to the equivalent of a terminating sanction and held that the continuance was therefore necessitated unless there had been a history of abuse of pretrial procedures or evidence that the violation was willful.

Based on the foregoing, the Court must grant the request to receive Sullivan's deposition given the trial is currently scheduled for September 11, 2026. (Code Civ. Proc., § 437c, subd. (h) [If it appears from the affidavits submitted in opposition that facts essential to justify opposition may exist but cannot for reasons stated, "the court shall deny the motion, order a continuance to permit...discovery to be had, or make any other order as may be just", emphasis added].)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500832	MELENDREZ VS UNITED GROUND EXPRESS, INC.	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY UNITED GROUND EXPRESS, INC.

Tentative Ruling: Granted.

Responding party is ordered to serve verified responses to the Demand for Production of Documents, Set One, No. 4, 5, 34, and 35 without objections within 30 days of service of notice (CCP § 2031.310).

Responding party is further ordered to pay attorney's fees and costs to moving party in the amount of \$3,566.00 within 30 days of service of notice. (CCP 2023.010, 2030.290 (c), 2031.310, and 2033.280.) P

Prevailing party ordered to give notice pursuant to CCP §1019.5.

This is an employment law discrimination action filed February 5, 2025 by Plaintiff Angelique Melendrez against Defendants United Ground Express, Inc., United Airlines, Inc., Donald Miller and Kevin Tomas, which alleges 10 causes of action for 1) discrimination in violation of FEHA, 2) hostile work environment, 3) retaliation in violation of FEHA, 4) failure to provide reasonable accommodation, 5) failure to engage in the interactive process, 6) failure to prevent discrimination, harassment, and retaliation, 7) wrongful termination in violation of public policy, 8) IIED, 9) whistleblower retaliation in violation of Labor Code section 1102.5, and 10) negligent hiring, supervision, and retention.

United Ground Express moves the court to compel Melendrez to provide further responses to Requests for Production of Documents (Set One) numbers 4, 5, 34 and 35 and for sanctions of \$4,566. The RFPs seek social media posts related to Plaintiff's employment and emotional distress claims and medical records and prescriptions relating to the same. United asserts that Melendrez agreed to produce these documents, but has failed to do so.

In opposition, Melendrez asserts that she has more than adequately responded to the discovery and any inability on her part to provide additional medical documentation regarding her claims lies strictly in the time required to retrieve these records from third-party custodians. Melendrez asserts that she is actively pursuing these records and will supplement her production immediately upon receipt. Melendrez asserts that sanctions based on the circumstances are inappropriate. Counsel's declaration submitted with the opposition declares that Plaintiff supplemented the RFPs and provided an additional 2,000+ documents from Plaintiff's medical providers.

In reply, United asserts that Plaintiff does not make any arguments based on her objections nor disputes that the documents are relevant and discoverable. United acknowledges that it received medical documents on July 23 at the same time as the opposition was served. However, United asserts that the responses were unverified and there was no production of social media documents.

Motion to Compel Further Response(s)

"Unless limited by order of the court ... any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved ... if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) The "relevance to the subject matter" and "reasonably calculated to lead to discovery of admissible evidence" standards are applied liberally. Any doubt is generally resolved in favor of permitting discovery, particularly where the precise issues in the case are not yet clearly established. (*Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790, fns. 7-8.) For discovery, admissibility at trial is not required. Rather, the test is whether the information sought might reasonably lead to other evidence that would be admissible. (Code Civ. Proc., § 2017.010; see *Davies v. Sup. Ct.* (1984) 36 Cal.3d 291, 301.)

A party may file a motion compelling further answers to requests for production if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., §2031.310.)

A motion to compel further responses to requests for production requires the moving party to state "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., §2031.310(b)(1).) To establish good cause, the moving party must demonstrate relevance and specific facts justifying discovery. (*Kirkland v. Superior Court (Guess? Inc.)* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production "is met simply by a fact-specific showing of relevance." (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

The RFPs and responses at issue are as follows:

RFPs 4 and 5: These requests seek social media posts, pictures or videos uploaded to social media platforms, between January 2019 to present that contain or reflect communications with any current or former United employees, reference her employment or allegations against United,

or relate in any way to the events referenced in the complaint or references to emotional distress experienced by Plaintiff.

The responses to both RFPs are meritless boiler plate objections only. GRANTED

RFPs 34 and 35: These requests seek all medical records for any treatment sought and any prescriptions received since January 1, 2015.

The responses to both RFPs are meritless boiler plate objections only. Supplemental responses were served, which United asserts were unverified. Counsel did not attach a copy of the supplemental response for the court's review.

"Unsworn responses are tantamount to no responses at all. [Citation.]" (See *Appleton v. Superior Court* 206 Cal.app.3d 632, 636.) Where responses are not verified "the court should proceed to rule on [moving party's motion] as it would on any discovery motions when the responses are unverified." (*Melendrez v. Superior Court* (2013) 215 Cal.App.4th 1343, 1357-1358.) As Melendrez has not shown that supplemental verified responses to these requests were made, the court will rule on the merits of the motion. The responses provided to the original requests are boiler-plate objections only without merit. GRANTED.

Sanctions

United seeks sanctions pursuant to CCP section 2023.030. "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct.... If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP §2023.030(a).) CCP §2023.010 sets forth conduct subject to sanctions as follows:

Misuses of the discovery process include, but are not limited to, the following:

- (a) Persisting, over objection and without substantial justification, in an attempt to obtain information or materials that are outside the scope of permissible discovery.
- (b) Using a discovery method in a manner that does not comply with its specified procedures.
- (c) Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.
- (d) Failing to respond or to submit to an authorized method of discovery.
- (e) Making, without substantial justification, an unmeritorious objection to discovery.
- (f) Making an evasive response to discovery.
- (g) Disobeying a court order to provide discovery.
- (h) Making or opposing, unsuccessfully and without substantial justification, a motion to compel or to limit discovery.

- (i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.

In addition, CCP §2031.310(h) provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, the court finds that reasonable sanctions are warranted in the reduced, but reasonable amount \$3,566.00.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507898	AMERICAN EXPRESS NATIONAL BANK VS STORER	MOTION TO SET ASIDE

Tentative Ruling: No tentative ruling. Hearing will be conducted on Wednesday ,August 5, 2026 at 8:30 a.m. in Department PS2.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509122	RODRIGUEZ VS DEPARTMENT OF MOTOR VEHICLES	HEARING ON WRIT OF MANDATE

Tentative Ruling: Denied.

Respondent to submit proposed judgment within 5 days of this order and provide notice pursuant to CCP 1019.5.

Petitioner, Corina T. Rodriguez, seeks a writ of mandate commanding DMV to set aside its orders suspending her driver’s license upon finding Petitioner had violated the provision of the Vehicle Code prohibiting the operation of a motor vehicle while under the influence of alcohol and refusal to submit to a blood alcohol test. Specifically, Petitioner challenges the DMV’s July 12, 2025, order suspending or revoking Petitioner’s privilege to operate a motor vehicle and the subsequent decision by the DMV on September 25, 2025, sustaining the suspension or revocation of Petitioner’s driving privilege, which became effective on October 4, 2025.

On December 11, 2025, Petitioner filed a Petitioner for Writ of Mandate with this Court (Code Civ. Proc., § 1094.5) to set aside DMV’s order of suspension.

Administrative Record

The complete Administrative Record (“AR”) consists of approximately 87 pages of documents in a single volume of documents. (See Notice of Lodging Certified Administrative Records.)

Underlying Offense Causing Suspension

Vehicle code section 23152 prohibits anyone under the influence of alcoholic beverage to drive a vehicle. (Veh. Code, § 23152(a).) Under California's implied consent law, "[a] person who drives a motor vehicle is deemed to have given his or her consent to chemical testing of his or her blood or breath for the purpose of determining the alcoholic content of his or her blood, if lawfully arrested for" a violation of Vehicle Code provision prohibiting the operation of a motor vehicle while under the influence of alcohol or drugs. (Veh. Code, § 23612(a)(1)(A).)

Under California's "administrative per se law" (Veh. Code, § 13353), upon receipt of the officer's sworn statement that the officer had reasonable cause to believe the person had violated a Vehicle Code provision prohibiting the operation of a motor vehicle while under the influence of alcohol or drugs (Veh. Code, § 23152), and the person refused to submit to, or did not complete, a chemical test or tests after being requested by the officer under the implied consent law (Veh. Code, § 23612), the DMV is required to suspend or revoke the person's driving privilege for given length of time depending on the applicable circumstances. (Veh. Code, § 13353(a)(1)-(3).) When a person is arrested for driving under the influence and refusals to comply with testing, the arresting officer or the DMV must serve the person with a notice of the order of suspension or revocation on the applicable DMV form. (Veh. Code, § 13353(c).)

Upon immediate suspension of the driver's license of a person arrested for driving under the influence and has refused to submit to testing (Veh. Code, § 13353(a)), the DMV automatically reviews the merits of the suspension order to determine by a preponderance of the evidence whether: (1) "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152); (2) "the person was placed under arrest," (3) "the person refused to submit to, or did not complete, the test or tests after being requested by a peace officer," and (4) "the person had been told that his or her driving privilege would be suspended or revoked if he or she refused to submit to, or did not complete, the test or tests." (Veh. Code, §§ 13553(d)(1)(4), 13557(b)(1)(A)-(C).) In its review, the DMV must consider the sworn report submitted by the arresting peace officer or any other evidence accompanying the report. (Veh. Code, § 13557(a).) The DMV's determination must be made before the effective date of the suspension and is final unless a hearing is requested. (Veh. Code, § 13557(b)(4), (c).)

The person whose license was suspended may request the DMV to hold a contested review hearing on its decision. (Veh. Code, § 13558(a), (c)(1).) The only issues at the hearing will be the facts considered in the DMV's automatic internal review (Veh. Code, § 13557(b)(3)(A)-(C)), that is, whether (1) "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152); (2) "the person was placed under arrest," and (3) "the person refused to submit to, or did not complete, the test or tests after being requested by a peace officer." (Veh. Code, § 13557(b)(1).) Evidence presented at the hearing must not be limited to the evidence presented at the DMV's internal review pursuant to section 13557. (Veh. Code, § 13558(b).)

"A person whose license suspension is upheld [at the administrative per se hearing] may seek judicial review of an adverse decision by way of petition for writ of administrative mandate." (*Dyer v. Department of Motor Vehicles* (2008) 163 Cal.App.4th 161, 167, Veh. Code, § 13559, subd. (a); Code Civ. Proc., § 1094.5.)

Standard of review

“A determination by the DMV to suspend an individual’s driver’s license is subject to judicial review in the trial court by means of a petition for writ of mandate.” (*Bussard v. Department of Motor Vehicles* (2008) 164 Cal.App.4th 858, 862.) Pursuant to Code of Civil Procedure section 1094.5, the trial court must exercise its independent judgment upon the evidence if the decision of an administrative agency will substantially affect a “fundamental vested right.” (*Berlinghieri v. Department of Motor Vehicles* (1983) 33 Cal.3d 392, 395.)

“Review is strictly limited to the record of the administrative hearing; the trial court may not consider any other evidence.” (*Dyer v. Department of Motor Vehicles, supra*, 163 Cal.App.4th at 167.) “‘The superior court uses its independent judgment to review DMV hearing decisions which suspend driver’s licenses. [Citation.] Under this standard of review, the court must independently weigh the evidence and may make its own findings. [Citation.] It must set aside the administrative decision where the agency’s findings are not supported “by the weight of the evidence.” ’ [Citation.]” (*Id.* at 167-168.)

Petitioner challenges the validity of the orders suspending her driving privilege, contending that the evidence admitted at the administrative per se hearing was insufficient to prove that she was driving, and therefore the arrest was unlawful. In particular, Plaintiff challenges the DMV’s reliance on two civilian statements which appeared in the arresting officer’s CHP 555 and 556 reports and the DS-367 statement, contending the statements are inadmissible hearsay. Plaintiff contends that no civil witness gave sworn testimony, no sworn declarations were offered, and no hearsay exception was established for the officer’s accounts of the witnesses’ statements. Plaintiff relies on the evidentiary rules governing administrative hearings as articulated by the Supreme Court in *Lake v. Reed* (1997) 16 Cal.4th 448 holding that hearsay evidence “‘may be used for the purpose of supplementing or explaining other evidence but shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.’ ” (*Id.* at 459; Gov. Code, § 11513(c).) Plaintiff contends that the hearing officer admitted the hearsay statements of the civilian witnesses into evidence over Plaintiff’s objection. According to Plaintiff, when stripped of the inadmissible hearsay, the weight of the evidence does not support a finding that the officer had reasonable cause to believe Petitioner was the driver. On that basis, Plaintiff contends that the DMV failed to prove, by admissible evidence, that the arresting officer had reasonable cause to believe Petitioner had been driving.

Here, Petitioner correctly outlines evidentiary rules of the administrative hearings. “Government Code section 11513 addresses the admissibility of evidence in administrative hearings.” [Citation.] (*Kazelka v. Department of Motor Vehicles* (2025) 109 Cal.App.5th 1239, 1247.) It states in relevant part: “The hearing need not be conducted according to technical rules relating to evidence and witnesses, except as hereinafter provided. Any relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs, regardless of the existence of any common law or statutory rule which might make improper the admission of the evidence over objection in civil action.” (Gov. Code, § 11513(c).) It further goes on to state: “Hearsay evidence may be used for the purpose of supplementing or explaining other evidence [at an administrative hearing] but over timely objection shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.” (Gov. Code, § 11513, subd. (d).)

Administrative records submitted in this case show that Petitioner objected to the unsworn statement of civilian witnesses as inadmissible hearsay. The hearing officer overruled the objection and sustained the license suspension. Petitioner points out that Officer Delgado did not personally observe Petitioner behind the wheel of her car at the time of his arrival but merely recounted the statements given by the witnesses who informed the officer that Petitioner was in

the driver's seat at the time of the collision and reversing her vehicle. Petitioner points out that these statements were included in the officer's reports, which he thereafter forwarded to the DMV. Petitioner contends that the statements embedded in the officer's reports cannot be used to prove that Petitioner was driving and therefore, the DMV has failed to determine by the preponderance of the evidence the first prong of the issues in a section 13353 administrative per se proceeding which is that "the peace officer had reasonable cause to believe the person had been driving a motor vehicle" in violation of the provision of the Vehicle Code prohibited driving under the influence of alcohol (Veh. Code, § 23152) (Veh. Code, §§ 13357(b)(1), 13358(b).)

The DMV concedes that the witness testimonies were hearsay evidence, but it argues that the testimonies were nevertheless competent and sufficient to prove that Petitioner was driving the car because hearsay evidence may establish probable cause for arrest. In support of this contention, they cite two appellate court cases *Mueller v. Department of Motor Vehicles* (1985) 163 Cal.App.3d 681 and *Cantrell v. Zolin* (1994) 23 Cal.App.4th 128. In *Mueller, supra*, the court held that "[h]earsay evidence has universally been held to establish probable cause," and thereon concluded that citizen witnesses' hearsay statements included in a police report were sufficient evidence to support a finding that the police officer had reasonable cause to believe that the driver had been driving while intoxicated and was therefore properly arrested. (*Id.* at 685.) In *Cantrell, supra*, the court found that a deputy's statement observing the motorist weaving was not inadmissible hearsay offered to prove the motorist was in fact weaving but was properly admitted to prove that the arresting officer had reasonable cause to believe the motorist was driving under the influence. (*Id.* at 133.) It should be noted, however, both of these cases were decided before *Lake v. Reed, supra*, 16 Cal.4th 448. *Mueller, supra*, did not consider the admissibility of the hearsay statements in light of the evidentiary rules under Government Code section 11513 as outlined in *Lake, supra*. *Cantrell, supra*, is distinguishable to this case because it did not involve reliance on inadmissible hearsay in sustaining a suspension order; the court determined that the officer's statement was not hearsay.

Nevertheless, here, the records show that the DMV's decision comports to the evidentiary rule of section 11513, subdivision governing administrative hearings. The DMV considered only the reports submitted by the arresting officer (CHP 555 and 556 reports and the DS-367 statement). Neither the arresting officer nor the civilian witnesses testified at the hearing. In the reports, it was noted that the arresting officer, Delgado, upon arriving at the scene observed Petitioner exhibited objective signs of intoxication such as swaying back and forth, slurred speech, and emitting odor of alcohol. When Petitioner was asked by the officer to submit to a field sobriety test, Petitioner refused to do so and refused to answer further questions without a lawyer. These facts are not disputed by Petitioner. The officer's reports were properly admitted into evidence at the administrative per se hearing. "[I]n an administrative hearing, '[a]ny relevant evidence shall be admitted if it is the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs....' [Citation.]" (*MacDonald v. Gutierrez* (2004) 32 Cal.4th 150, 158-159.) Pursuant to Government Code section 11513, subdivision (c), " '[a] police officers report, even if unsworn, constitutes "the sort of evidence on which responsible persons are accustomed to rely in the conduct of serious affairs."' [Citation.]" (*Id.* at 159.) Furthermore, the officer's reports would be excepted from the hearsay rule under the public employee records exception for reason the officer wrote the report within the scope of his duty as a public employee, the report was made near the time of the accident, and method and time of preparation were such as to indicate report's trustworthiness. (*Lake v. Reed, supra*, 16 Cal.4th at 468; Evid. Code, § 1280.)

The officer's reports also included statements made by Petitioner and eyewitnesses, which the DMV relied on as additional factors in finding that the officer lawfully arrested Petitioner upon finding that she was driving the blue Chevrolet. As Petitioner has pointed out, the admissibility of the civilian statements embedded in the reports are hearsay and, unless a hearsay exception is established, they may only be used for the purpose of supplementing or explaining other evidence

but “shall not be sufficient in itself to support a finding unless it would be admissible over objection in civil actions.’ ” (*Id.* at 459; Gov. Code, § 11513(c).) However, the DMV’s findings do not solely rely on the civilian statements. The officer’s reports recounted that Petitioner also made a statement to the officer that she told her daughter to take the wheel at Cabazon and that she was not the one driving the blue Chevrolet at the time of collision. The licensee’s admission is excepted from the hearsay rule as a party admission. (*Id.* at 468; Evid. Code, § 1220.) As in *Lake*, the hearsay accounts of eyewitnesses indicating the arrestee was the driver are admissible in the administrative hearing to explain and supplement Petitioner’s admission that she had been driving at some point before the collision. (*Id.* at 458, fn. 6.)

As noted by the Supreme Court in *Troppman v. Valverde* (2007) 40 Cal.4th 1121, neither Vehicle Code sections 23612 (the implied consent law) and section 13353 (the license suspension/revocation law) “require evidence that actual driving occurred immediately prior to the arrest for driving while under the influence.” (*Id.* at 1137.) The court reasoned that “the primary focus of both statutes ... is upon whether the officer had probable cause to believe the person had been driving while under the influence, and therefore whether the person lawfully was arrested – and that revocation or suspension of a license under section 13353 does not require proof beyond the four factors listed in sections 13353, subdivision (d), and section 13557, subdivision (b)(1), and made exclusively by section 13358, subdivision (c)(1). In other words, no requirements exists, under either the implied consent law, section 23612, or under the license suspension/revocation statute, section 13353, of proof that the person actually was driving immediately prior to his or her arrest for driving while under the influence.” (*Ibid.*) Here, Petitioner does not deny the fact of admitting to the officer that she, in fact, was driving at some point in time before Petitioner allegedly had her daughter take the wheel at Cabazon because she was too intoxicated to drive. This admission is sufficient to meet the first prong of the showing required for section 13353 administrative per se proceeding.

Based on the foregoing, the records show the DMV has determined by preponderance of evidence that Officer Delgado had reasonable cause to believe the Petitioner had been driving a motor vehicle under the influence of alcohol. (Veh. Code, § 13558(b).)